

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500585	CASTRO VS TD BANK	MOTION TO DISMISS COMPLAINT ON COMPLAINT FOR FRAUD OF SANDRA CASTRO BY TD BANK

Tentative Ruling: The Court GRANTS the motion under Section 438(h)(4)(C) of the Code of Civil Procedure.

TD Bank moves to dismiss the Complaint against it for lack of prosecution. TD Bank argues that Plaintiff's time to amend the Complaint has expired and that as of the date of the motion, Plaintiff has failed to file an amended complaint, request for extension of time, or any document related to her claims against any defendant.

In two separate oppositions, Plaintiff contends that she was not served with TD Bank's motion to dismiss but only obtained a copy from the Court clerk and case register. Plaintiff further contends that TD Bank failed to meet and confer or serve the motion 45 days before the hearing, as required by C.C.P. § 583.410-583.430. Plaintiff then argues the merits of the underlying case.

In reply, TD Bank asserts that its motion is timely because it was brought under C.C.P. § 581(f)(2), not under C.C.P. § 583.410-583.430. TD Bank further argues that it properly served Plaintiff with a copy of the motion by email and mail. TD Bank then contends that Plaintiff waived her arguments regarding improper service because she opposed the motion on its merits.

ANALYSIS

Procedural Issues

Plaintiff argues that the motion is procedurally defective because TD Bank failed to meet and confer or serve the motion 45 days before hearing, in violation of California Rules of Court, Rules 3.724 and 3.1342.

Rule 3.724 requires the parties to meet and confer 30 days before a case management conference about issues set forth in Rule 3.727, including whether the pleadings may be amended, and any other matters that should be considered by the court or addressed in its case management order. (C.R.C., Rule 3.727(3) and (20).) However, TD Bank's Case Management Statement, filed July 20, 2026, states that counsel "has attempted to meet and confer with Plaintiff by the phone number listed on her complaint many times. Counsel for TD Bank, N.A. has left various voicemails, if the mailbox would allow it, and has never received a call back." (TD Bank's CMS, dated July 20, 2026.) Accordingly, TD Bank has substantially complied with meet and confer requirements.

As for timeliness, Rule 3.1342 requires that a party seeking dismissal of a case for untimely prosecution under C.C.P. § 583.410-583.430 must serve and file a notice of motion at least 45 days before the date set for the hearing of the motion. Despite the title of the motion, TD Bank does not move to dismiss for failure to timely prosecute under C.C.P. § 583.410-583.430, but rather for entry of judgment C.C.P. § 438, which is governed by noticed motions under C.C.P. § 1010. (C.C.P. § 438(i)(2).) C.C.P. § 1005(b) provides that moving papers for noticed motions need only be served 16 court days prior to the hearing. Nevertheless, TD Bank submits evidence to show that the motion was emailed to Plaintiff on June 10, 2026, and delivered via FedEx to Plaintiff's address on June 11, 2026. (Farley Decl., ¶¶ 6-7, Exhs. A and B.) Accordingly, TD Bank served its motion 55 and 54 days prior to the scheduled hearing date of August 4, 2026. As such, TD Bank's motion is timely.

Merits

TD Bank brings this motion under C.C.P. § 581(f)(2), which states: “The court may dismiss the complaint as to that defendant when... after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” However, the issue here is that TD Bank did not prevail on a demurrer. Rather, the underlying motion was for a judgment on the pleadings. Although a motion for judgment on the pleadings is evaluated on the same grounds as a general demurrer, it is subject to different procedural requirements. (See C.C.P. § 438.)

If the motion for judgment on the pleadings is “granted with respect to the entire complaint or answer with leave to file an amended complaint or answer, as the case may be, but an amended complaint or answer is not filed, then after the time to file an amended complaint or answer, as the case may be, has expired, judgment shall be entered forthwith in favor of the moving party.” (C.C.P. § 438(h)(4)(C).) The time to file an amended complaint expires after 30 days. (C.C.P. § 438(h)(2).) However, the court shall not enter judgment until a party moves for entry of judgment in its favor pursuant to a noticed motion. (C.C.P. § 438(i)(1)(B).) “At the hearing on the motion provided for in this subdivision, the court shall determine whether to enter judgment in favor of a particular party.” (C.C.P. § 438(i)(3).)

The Court construes this motion as a motion for entry of judgment under C.C.P. § 438(i)(1)(B). The Court granted TD Bank’s motion for a judgment on the pleadings on December 31, 2025, and granted Plaintiff leave to amend. Accordingly, Plaintiff’s time to amend the Complaint expired on January 31, 2026. (C.C.P. § 438(h)(2).) As of July 30, 2026, Plaintiff has failed to file an amended complaint against TD Bank.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501918	CONTRERAS VS VILLANUEVA	MOTION TO ADOPT APPRAISED FAIR MARKET VALUE PURSUANT TO THE PARTITION OF REAL PROPERTY ACT BY DIEGO CONTRERAS

Tentative Ruling: The Court continues the hearing to October 2, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507215	WALKER VS FCA US	MOTION FOR SANCTIONS BY FCA US

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601405	GHODS VS HEDAYATI	DEMURRER ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY OF MOHAMAD R. GHODS BY GHAFFAR K. HEDAYATI

Tentative Ruling: The Court OVERRULES the Demurrer. Answer shall be filed within ten (10) days of this Order.